

An Act

ENROLLED HOUSE
BILL NO. 4430

By: Hilbert and Deck of the
House

and

Rosino of the Senate

An Act relating to medical malpractice; amending 59 O.S. 2021, Section 519.6, as amended by Section 5, Chapter 343, O.S.L. 2025 (59 O.S. Supp. 2025, Section 519.6), which relates to license required, supervision, and practice agreements within the Physician Assistant Act; amending Section 2, Chapter 340, O.S.L. 2025 (59 O.S. Supp. 2025, Section 567.5b), which relates to Advanced Practice Registered Nurse malpractice insurance requirements; providing for compliance; and providing an effective date.

SUBJECT: Medical malpractice

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 519.6, as amended by Section 5, Chapter 343, O.S.L. 2025 (59 O.S. Supp. 2025, Section 519.6), is amended to read as follows:

Section 519.6. A. No health care services may be performed by a physician assistant unless a current license is on file with and approved by the State Board of Medical Licensure and Supervision.

B. A physician assistant with six thousand two hundred forty (6,240) or more hours of postgraduate clinical practice experience who has reported those hours to the Board shall not be required to practice under the supervision of a delegating physician.

1. A physician assistant may report the completion of postgraduate clinical practice experience to the Board at any time after completion of at least six thousand two hundred forty (6,240) such hours.

2. Hours earned prior to the effective date of this act shall be counted towards the six thousand two hundred forty (6,240) hours.

3. The Board shall maintain, make available, and keep updated, on the Internet website of the Board, a list of physician assistants who have reported completion of six thousand two hundred forty (6,240) or more postgraduate clinical practice experience hours.

4. The Board shall prescribe a form for reporting postgraduate clinical practice experience by a physician assistant. The Board shall make available and keep updated on the Internet website of the Board the prescribed form. This reporting form may be filed electronically. The Board shall not charge a fee for reporting hours or filing of the prescribed form.

5. Nothing in this subsection shall prohibit a physician assistant from maintaining a practice agreement; however, such an agreement is not required for a physician assistant with the reported six thousand two hundred forty (6,240) hours of postgraduate clinical practice experience, provided any practice agreements are subject to the requirements of paragraphs 1, 2, 3, and 4 of subsection C of this section.

6. Nothing in this subsection shall restrict the ability of the Board to require supervision as a part of disciplinary action against the license of a physician assistant.

C. A physician assistant with less than six thousand two hundred forty (6,240) hours of postgraduate clinical practice experience or who has completed six thousand two hundred forty (6,240) hours but has not reported those hours to the Board shall practice under the supervision of a delegating physician with the following requirements:

1. All practice agreements and any amendments shall be filed with the State Board of Medical Licensure and Supervision within ten (10) business days of being executed. Practice agreements may be filed electronically. The State Board of Medical Licensure and Supervision shall not charge a fee for filing practice agreements or amendments to practice agreements;

2. A physician assistant may have practice agreements with multiple allopathic or osteopathic physicians. Each physician shall be in good standing with the State Board of Medical Licensure and Supervision or the State Board of Osteopathic Examiners;

3. The delegating physician need not be physically present nor be specifically consulted before each delegated patient care service is performed by a physician assistant, so long as the delegating physician and physician assistant are or can be easily in contact with one another by means of telecommunication. The delegating physician shall provide appropriate methods of participating in health care services provided by the physician assistant including:

- a. being responsible for the formulation or approval of all orders and protocols, whether standing orders, direct orders or any other orders or protocols, which direct the delivery of health care services provided by a physician assistant, and periodically reviewing such orders and protocols,
- b. regularly reviewing the health care services provided by the physician assistant and any problems or complications encountered,
- c. being available physically or through telemedicine or direct telecommunications for consultation, assistance with medical emergencies or patient referral,
- d. reviewing a sample of outpatient medical records. Such reviews shall take place at a site agreed upon between the delegating physician and physician assistant in the practice agreement which may also occur using electronic or virtual conferencing, and
- e. that it remains clear that the physician assistant is an agent of the delegating physician; but, in no event shall the delegating physician be an employee of the physician assistant;

4. In patients with newly diagnosed complex illnesses, the physician assistant shall contact the delegating physician within forty-eight (48) hours of the physician assistant's initial examination or treatment and schedule the patient for appropriate evaluation by the delegating physician as directed by the physician.

The delegating physician shall determine which conditions qualify as complex illnesses based on the clinical setting and the skill and experience of the physician assistant.

D. A physician assistant not practicing under a practice agreement may prescribe written and oral prescriptions and orders. The physician assistant not practicing under a practice agreement may prescribe medical supplies, services, and drugs, including controlled medications in Schedules III through V pursuant to Section 2-312 of Title 63 of the Oklahoma Statutes. Physician assistants not practicing under a practice agreement may not dispense drugs, but may request, receive, and sign for professional samples and may distribute professional samples to patients.

E. A physician assistant practicing under a practice agreement may prescribe written and oral prescriptions and orders. The physician assistant practicing under a practice agreement may prescribe medical supplies, services, and drugs, including controlled medications in Schedules II through V pursuant to Section 2-312 of Title 63 of the Oklahoma Statutes, written and oral prescriptions and orders only as delegated by the delegating physician, and prescriptions and orders for Schedule II drugs written by such physician assistant shall be included on a written protocol determined by the delegating physician. Physician assistants practicing under a practice agreement may not dispense drugs, but may request, receive, and sign for professional samples and may distribute professional samples to patients. Provided that a physician assistant practicing under a practice agreement may not prescribe any controlled medications in a Schedule that the delegating physician is not registered to prescribe.

F. Each physician assistant licensed under the Physician Assistant Act shall keep his or her license available for inspection at the primary place of business and shall, when engaged in professional activities, identify himself or herself as a physician assistant.

G. A physician assistant shall be bound by the provisions contained in Sections 725.1 through 725.5 of this title.

H. 1. A physician assistant not practicing under a practice agreement, or the employer of such physician assistant on his or her behalf, shall carry malpractice insurance or demonstrate proof of financial responsibility in a minimum amount of One Million Dollars (\$1,000,000.00) per occurrence and Three Million Dollars

(\$3,000,000.00) in the aggregate per year. This requirement shall not apply to a physician assistant practicing under a practice agreement.

2. A physician assistant who is employed by or under contract with a federal agency that carries malpractice insurance in any amount on behalf of the physician assistant shall be deemed in compliance with paragraph 1 of this subsection when practicing under such federal employment or contract. However, to the extent the physician assistant practices outside of such federal employment or contract, the physician assistant, or his or her employer, shall comply with paragraph 1 of this subsection.

3. A physician assistant who is employed by a state agency or facility that is covered by or subject to The Governmental Tort Claims Act, Section 151 et seq. of Title 51 of the Oklahoma Statutes, shall be deemed in compliance with paragraph 1 of this subsection when practicing under such state employment. However, to the extent the physician assistant practices outside of such state employment, the physician assistant shall comply with paragraph 1 of this subsection.

SECTION 2. AMENDATORY Section 2, Chapter 340, O.S.L. 2025 (59 O.S. Supp. 2025, Section 567.5b), is amended to read as follows:

Section 567.5b. A. An Advanced Practice Registered Nurse, or the employer of the Advanced Practice Registered Nurse on his or her behalf, shall carry malpractice insurance or demonstrate proof of financial responsibility in a minimum amount of One Million Dollars (\$1,000,000.00) per occurrence and Three Million Dollars (\$3,000,000.00) in the aggregate per year. This requirement shall apply only to the Advanced Practice Registered Nurse and shall not be construed as to require the Advanced Practice Registered Nurse to provide malpractice insurance coverage to any supervising physician.

B. An Advanced Practice Registered Nurse who is employed by or under contract with a federal agency that carries malpractice insurance in any amount on behalf of the Advanced Practice Registered Nurse shall be deemed in compliance with subsection A of this section when practicing under such federal employment or contract. However, to the extent the Advanced Practice Registered Nurse practices outside of such federal employment or contract, the Advanced Practice Registered Nurse, or his or her employer, shall comply with subsection A of this section.

C. An Advanced Practice Registered Nurse who is employed by a state agency or facility that is covered by or subject to The Governmental Tort Claims Act, Section 151 et seq. of Title 51 of the Oklahoma Statutes, shall be deemed in compliance with subsection A of this section when practicing under such state employment. However, to the extent the Advanced Practice Registered Nurse practices outside of such state employment, the Advance Practice Registered Nurse shall comply with subsection A of this section.

SECTION 3. This act shall become effective November 1, 2026.

Passed the House of Representatives the 23rd day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 29th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____